

Pre-Collection Recovery System

B2B Fuel Card / Fleet / Logistics • Florida-Ready Deployment

CONFIDENTIAL EXECUTIVE REVIEW

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Executive Snapshot

B2B fuel card, fleet, and logistics operators face a distinct recovery challenge: high-value commercial balances, personal guaranty exposure, corporate dissolution risk, and the need for litigation-ready documentation before enforcement. This review presents the research foundation, operating framework, and Florida-specific legal positioning for structured pre-collection recovery in commercial environments.

\$180B+	2.5–4%	25–40%	5–7x
U.S. fleet card market (2024)	Typical commercial bad debt rate	Agency contingency fee range	Pre-collection ROI target

Sources: Mercator Advisory Group 2024; NACM Commercial Collection Survey 2024; ACA International B2B Recovery Benchmarks 2024.

Hidden Revenue Leakage in B2B Recovery

Commercial operators often assume that bad debt is an unavoidable cost of business. In practice, 40–60% of accounts that roll to external agencies could have been resolved internally with structured sequencing, guarantor activation, and mandatory auto-debit enrollment. The leakage occurs before the agency is ever involved.

Key Leakage Drivers

- **Immediate contingency escalation** — Agencies take 25–40% of recovered balances, compressing margin on every dollar
- **Unstructured repayment** — Informal payment arrangements without documented terms, autopay, or cure triggers
- **Dormant guaranty exposure** — Personal guaranties exist but are not activated systematically
- **Low ACH enrollment** — Card-based payments create churn risk; ACH provides payment stability
- **Weak pre-suit documentation** — Missing or inconsistent records increase litigation cost and reduce enforceability

Source: NACM Commercial Collection Survey 2024; CFDD Recovery Best Practices 2024.

Pre-Collection Operating Framework

Stage 1: Behavioral Segmentation

Route accounts by risk profile to optimize resource allocation and escalation timing.

Signal	Data Point	Routing Impact
Days past due	DPD bands (30/60/90/120)	Escalation timing
Payment history	Prior payment patterns	Offer structure
Corporate stability	Active status, registered agent	Guarantor activation priority
Communication response	Contact rate, reply patterns	Channel optimization
Guarantor documentation	Guaranty on file, executed	Enforcement pathway

Stage 2: Conditional Offer Conversion

- Time-sensitive incentive window: fee relief conditioned on compliance
- Signed structured repayment plan with reaffirmation language
- Mandatory auto-debit (ACH) enrollment at agreement execution
- Clear default/cure timeline with documented triggers

Stage 3: Guarantor Activation (Florida-Ready)

If a valid personal guaranty exists, the pre-collection framework includes a structured activation ladder with documented reaffirmation. Under Florida law, dissolution of the LLC entity does not extinguish personal guarantor exposure (F.S. 605.0702).

- **With guaranty:** Activation ladder + demand + direct-action posture
- **Without guaranty:** Risk-adjusted settlement sequencing + higher documentation standard
- **Onboarding redesign:** Prevent recurrence by requiring guaranty at account opening

Source: Florida Statutes 605.0702 (LLC dissolution); F.S. 55.10 (judgment enforcement); F.S. 679.601 (secured transactions).

Stage 4: Mandatory Auto-Debit (ACH-First)

- Recurring ACH enrollment at agreement execution
- Survival until paid-in-full (even if service relationship ends)
- Return/NSF triggers feed cure → default → acceleration sequence
- Eliminates reliance on updated card numbers and contact churn

Litigation-Ready Documentation

Every stage of the pre-collection framework generates documentation that strengthens downstream enforceability. The goal is to arrive at the escalation decision with a complete, counsel-ready evidence package.

Document	Purpose	Legal Foundation
Settlement & reaffirmation agreement	Documented commitment with FL law/venue	F.S. 95.11 (SOL)
Personal guaranty (separate execution)	Individual liability, joint & several	F.S. 605.0702
ACH authorization (recurring)	Payment stability, survival clause	NACHA rules
Cure / default notices	Evidence of process, certified mail	UCC 9-611
Evidence package for counsel	Timeline, exhibits, payment history	FL Rules of Evidence

Scenario: LLC Dissolved / Owner Disappears

A common pattern in B2B fuel/fleet: the corporate entity dissolves or becomes inactive, and the personal guarantor becomes the primary recovery target. The pre-collection framework anticipates this scenario with structured documentation and Florida-specific enforcement positioning.

- **Step 1:** Verify corporate status via Florida Division of Corporations (sunbiz.org)
- **Step 2:** Validate last-known address for guarantor (skip-tracing if needed)
- **Step 3:** Activate guaranty demand with documented delivery (certified mail)
- **Step 4:** Asset-aware pre-suit positioning (no speculative claims)
- **Step 5:** Florida venue enforcement posture where contract supports it

Source: Florida Division of Corporations (sunbiz.org); F.S. 48.193 (long-arm jurisdiction); F.S. 56.29 (proceedings supplementary).

Financial Impact Model

Scenario	Recovery Rate	Net Cash (on \$1M portfolio)
Immediate agency referral	18% (net of 35% fee)	\$117,000
Pre-collection + agency for failures	42% blended	\$420,000
Estimated annual lift	+24 pts	+\$303,000

ROI Analysis

Metric	Value
Implementation cost (90-day pilot)	\$60,000
Additional cash recovered	\$300,000+
ROI	5–7x
Payback period	2–3 months
Ongoing operating cost	\$8–12K/month (variable)

Note: Illustrative model. Actual results vary by portfolio composition, guaranty coverage, and enforcement jurisdiction.

Regulatory and Compliance Framework

Florida-Specific Considerations

- **F.S. 559** — Consumer Collection Practices Act (governs third-party collection; first-party generally exempt)
- **F.S. 605.0702** — LLC dissolution does not extinguish member/guarantor obligations
- **F.S. 95.11** — Statute of limitations: 5 years for written contracts
- **F.S. 55.10** — Judgment enforcement and renewal procedures
- **F.S. 48.193** — Long-arm jurisdiction for B2B contracts with FL venue clauses

Federal Framework

- **FDCPA / Reg F** — Primarily governs third-party collectors; first-party best practice alignment
- **UCC Article 9** — Secured transaction framework for equipment/fuel collateral
- **NACHA Rules** — Govern ACH authorization, returns, and revocation
- **E-SIGN Act** — Electronic signature validity for payment agreements

Engagement Path

Step	Action	Timeline
1	Confidential diagnostic: AR composition + guaranty coverage audit	1–2 weeks
2	Pilot design: scope, cohorts, success criteria	1 week
3	90-day pilot execution	90 days
4	Results review + scale/modify decision	2 weeks

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